

TENTATIVE RULINGS
Judge SHEILA RECIO, Dept. W8

Law & Motion is heard on Fridays at 9:30 a.m., *unless specially set.*

CIVIL COURT REPORTERS: Department W8 does not provide the services of an official court reporter for law and motion hearings. Please see the court's website for rules and procedures for court reporters obtained by the parties.

POSTING TENTATIVES: Department W8 endeavors to post tentative rulings for law and motion hearings by 5 p.m. on Thursdays. **Do NOT call the Department for a tentative ruling if none is posted.** The court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been prepared.

SUBMITTING ON THE TENTATIVE: If ALL sides intend to submit on the tentative ruling, please advise the Department's clerk or courtroom attendant by calling (657) 622-5908. If so advised, the tentative ruling shall become the court's final ruling and the prevailing party shall file and serve a Notice of Ruling and if appropriate, prepare a Proposed Order pursuant to Rule 3.1312 of the California Rules of Court. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

NO APPEARANCES: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court will determine if the matter is taken off calendar, the tentative ruling becomes the final ruling, or a different order is issued at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

REMOTE APPEARANCES: Department W8 conducts non-evidentiary proceedings, including law and motion via Zoom through the court's online check-in process available through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings>. All counsel and self-represented parties appearing for such hearings **must check-in at least 5 minutes before** the 9:30 a.m. hearing on Friday.

The court encourages the parties and attorneys to take advantage of remote appearances for non-evidentiary hearings to reduce travel time, parking costs, and potential hearing delays. However, keep in mind that potential technological or audibility issues could arise when using remote technology, which may require a delay of or halt the proceedings. To help

avoid such, please log in and test your equipment in advance of the hearing. Also, if technological or audibility issues arise during the proceeding, please call (657) 622-5908.

All remote video participants shall comply with the court's "**Guidelines for Remote appearances**", found at <https://www.occourts.org/system/files/guidelinesforremoteproceedings.pdf>.

IN-PERSON: Parties preferring to appear in-person for a law and motion hearing may do so, consistent with Section 367.75 of the Code of Civil Procedure and Orange County Local Rule 375.

PUBLIC ACCESS: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

May 15, 2026

#	Case Name	
2	Li vs. Zhuang	<u>Motion to Be Relieved as Counsel of Record</u> No Tentative. The parties/counsel should be prepared to discuss the following "rinse and repeat" pattern of obtaining trial continuances in this action: On the scheduled 7/7/25 trial date, Attorney Young stated he was specially appearing and would be substituting into this case for Defendant HAIYAN ZHAUNG. (7/7/25 Minute Order.) As such, the court granted a trial continuance to 8/18/25. (Id.) Shortly after the hearing, Attorney Young filed a substitution form on 7/21/25. (ROA 165.) And shortly thereafter, on 8/4/25, attorney Young filed a motion to be relieved as counsel, which for some reason he set for hearing months out – on 11/14/25 (despite multiple earlier available law and motion hearing dates). (ROA 165.)

On the scheduled 8/18/25 trial date, attorney Young requested another trial continuance based on his pending motion to be relieved as counsel, which again he set for hearing in November. (8/18/25 Minute Order [ROA 180].) In response, the court advanced the hearing on the motion to be relieved as counsel and continued the trial date to 10/31/25. (Id.)

On the new scheduled 10/31/25 trial date, attorney Young did not personally appear. (10/31/25 Minute Order [ROA 182].) Rather, he arranged for another attorney (ALBERT SIU) to “specially appear” for him and request a trial continuance. (Id.) At the hearing, the court denied Attorney Young’s motion to be relieved as counsel, as Attorney Young filed no proof of service on the client or proposed order, as required. (10/31/25 Minute Order [ROA 182].) Trial was then trailed to 11/3/25. (Id.)

On the 11/3/25 scheduled trial date, attorney Young appeared remotely, apparently from China, and stated he would not return from China until 11/17/25. (11/3/25 Minute Order [ROA 187].) The court continued the trial to 12/1/25. (Id.)

On the scheduled 12/1/25 trial date, attorney Young appeared remotely and requested yet another trial continuance, stating he would like to refile his motion to withdraw as counsel. (12/1/25 Minute Order [ROA 202].) Trial was continued to 1/26/26. (Id.)

Thereafter, **on 12/2/25, attorney Young filed another motion to be relieved as counsel**, which was set for hearing on 1/9/26. (ROA 205.) Attorney Young, however, failed to appear for the 1/9/26 hearing and the motion was taken off calendar.

On the scheduled 1/26/26 trial date, attorney Young again requested a continuance and the matter trailed to 1/27/26. (1/26/26 Minute Order [ROA 212].) **On 1/27/26, a trial continuance was granted to 6/15/26 after attorney Young pledged to remain on the case if a continuance of the trial is granted.** Despite the representation, on 3/27/26 attorney Young filed the instant motion to be relieved as counsel for Defendant HAIYAN ZHAUNG. Little to no

		information is provided, except for the conclusion that there has been a breakdown of the attorney-client relationship. A 1-2 day bench trial remains set for 6/15/26, at 8:45 am. The trial was specially set based on Attorney Young's representations.
4	Oei vs. Abinante	<u>Motion to Be Relieved as Counsel of Record</u> The court GRANTS the unopposed Motion to Be Relieved as Counsel for Defendant MATTHEW ABINANTE filed by attorney R. SCOTT HARLAN (of HARLAN LEGAL, PC). The court finds moving attorney meets the requirements set forth in Rule 3.1362 of the California Rules of Court. The order shall not become effective until the filing of a Proof of service showing service of the order on the client. Moving attorney to give notice and file a proof of service within 14 days. <i>Upcoming CMC</i> The court has reviewed the case file, including case management statements filed on 5/11/26. The case is not at-issue. Defendant MATTHEW ABINANTE has filed a demurrer and a motion to strike, which are set for hearing on 7/10/26. The court CONTINUES the Case Management Conference to Monday, September 14, 2026, at 10:00 am in Dept W8. All appearing parties SHALL file and serve a new timely case management statement at least 15 calendar days prior to the continued hearing as required by the rules, including California Rules of Court rule 3.725 and Local Rule 369. Plaintiff to give notice.

6	Yum vs. U.S. Bancorp	<u>Motion to Set Aside Entry of Default</u> The court GRANTS Defendant SOFI LENDING CORP's unopposed motion to set aside the default entered against it on 1/27/26. The motion is supported by an attorney affidavit of fault, which sufficiently shows inadvertence. Defense counsel timely filed an Answer on 1/23/26 but mistakenly stated that the Answer was being filed on behalf of "SoFi <u>Bank</u> Lending Corp." (ROA 43, emphasis supplied.) While the Answer was accepted by the Clerk's Office for filing, the Clerk's Office also apparently entered default shortly thereafter on 1/27/26, against "SoFi Lending Corp" as the Answer filed on 1/23/26 was not on behalf of "SoFi Lending Corp". The motion is timely and moving defendant has established a proper ground for setting aside the default. As such, the court VACATES the default entered on 1/27/26. Moving Defendant SHALL separately file and serve its proposed Answer (ROA 71) within 7 days of this ruling. Moving Defendant to give notice.
7	Keller vs. Etheridge	<u>Motion for Leave to File First Amended Complaint</u> OFF-CALENDAR. The hearing was vacated after the moving party withdrew the motion. (See 5/12/26 Minute Order [ROA 225] and Plaintiff's Notice of Withdrawal [ROA 221].)
8	Sierra vs. POPA Federal Credit Union	<u>Motion for New Trial</u>

The court **DENIES** Plaintiff NANCY SIERRA's motion for a new trial.

The court entered judgment on 3/12/26, and the court clerk mailed the judgment to the parties on 3/12/26. (ROAs 623, ROA 624.) Thereafter, Plaintiff timely filed a notice of intention to move for new trial on 3/26/26. (ROA 635.)

As Defendants POPA FEDERAL CREDIT UNION and LESLIE LARA note, Plaintiff thereafter filed *untimely* supporting papers for the motion without requesting or obtaining an extension of time to do so. Concerning motions for new trial, the Code of Civil Procedure states, "within 10 days of filing the notice, the moving party shall serve upon all other parties and file any brief and accompanying documents, including affidavits in support of the motion." (Code Civ. Proc., § 659a.)

Although due by Monday, 4/6/26, Plaintiff did not file her supporting papers until 4/20/26 — i.e., 26 days after the notice was filed (and over twice the statutory time period to do so). (ROA 640.) Plaintiff also thereafter filed a supplemental letter brief in support of the motion on 4/22/26, which contained additional exhibits in support of the motion. (ROA 642.)

The court does not consider the untimely papers. Both the memorandum (ROA 640) and supplemental letter brief (ROA 642) are untimely under section 659a. No extension of time for filing was requested or granted, good cause for an extension was not shown, and any extension of time cannot exceed 10 days. (See Code Civ. Proc., § 659a ["These deadlines may, for good cause shown by affidavit or by written stipulation of the parties, be extended by any judge for an additional period not to exceed 10 days."].)

The only timely supporting document filed by Plaintiff was the notice of intention to move for new trial (ROA 635), which is insufficient to warrant granting the motion. According to that document, Plaintiff moves for a new trial on the grounds of: (1) irregularity in the proceedings of the court, (2) insufficiency of the evidence, and (3) error in law.

A motion for a new trial based on the first four grounds enumerated in the statute (irregularity in proceedings, jury misconduct, accident or surprise, and new evidence) must be made on affidavits. (Code Civ. Proc., § 658.) A motion based on one of the remaining grounds must be made on the minutes of the court. (*Id.*; *Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1192.) The “minutes of the court” include the records of the proceedings entered by the judge or courtroom clerk, showing what action was taken and the date it was taken, and may also include depositions and exhibits admitted into evidence and the trial transcript. (*Id.*)

Plaintiff’s first ground (i.e., irregularity of proceedings) fails because it must be made on affidavits and there is no timely affidavit filed.

Plaintiff’s second and third grounds (insufficiency of evidence and error of law) must be made on the minutes of the court. There are no minutes supporting the motion for new trial.

Finally, the court notes that Plaintiff is incorrect when arguing that “[a]s a self-represented litigant, Plaintiff’s filings are entitled to liberal construction.” (Reply Br., at p. 2, lines 18-19.) In support of the argument, Plaintiff cites to *Rappleyea v. Campbell* (1994) 8 Cal.4th 975 and *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826. *Rappleyea* make clear that self-represented litigants must comply with the same procedural requirements applicable to attorneys. (See *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984–985 [“we make clear that mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation.”].) *Aguilar* deals with the standards applicable with summary judgment motions and makes no mention of any leniency for a self-represented litigant.

In sum, the motion is DENIED.

Defendants to give notice.

9	Scott vs. Innovative Pain Treatment Solutions, LLC	<u>Motion to Dismiss Stakeholder</u> (Case Management Conference) 1. Motion to Dismiss The court CONTINUES Plaintiff KYLE SCOTT's motion to dismiss stakeholder to July 31, 2026, at 9:30 am in Department W08. Plaintiff filed this interpleader action and now moves for an order: (1) dismissing Plaintiff as stakeholder, (2) awarding \$3,174.70 in costs and \$8,875.00 in attorney's fees, and (3) permitting deposit of the remaining interpleaded funds of \$14,818.22 for Defendant BAHYA SIGAFOES and \$3,728.80 for Defendant CHERRY ANTOINE with the court. After filing the motion on 3/23/26, Plaintiff named F & M RADIOLOGY MEDICAL CENTER ("F&M") as Doe 2 on 4/16/26. A Proof of Service re Summons and Complaint was recently filed as to F&M, showing service of the summons and complaint and CMC notice on 4/22/26. (ROA 131.) As such, F&M's time to respond has not yet expired. Moreover, the proof of service does not show that F&M was served with the instant motion. As F&M may claim an interest in the interpleaded funds, the court finds additional notice is required before it will rule on the instant motion. Plaintiff SHALL immediately serve F & M Radiology Medical Center with the moving papers, if it has not already done so, and give notice of the continued hearing, including to F&M. Plaintiff shall file proof of service no later than nine (9) court days before the continued hearing date. Again, Plaintiff to give notice.

		2. CMC The court also CONTINUES the Case Management Conference to July 31, 2026, at 9:30 am in Dept W8, to be heard with the pending law and motion matter scheduled at that time. Plaintiff to give notice.
10	Chaganti vs. Red Tail Residential LLC	<u>Motion to Dismiss/Stay Action</u> The court DENIES without prejudice the motion by specially appearing Defendants RED TAIL RESIDENTIAL, LLC and LINDSY HARVEY to dismiss or stay action under the doctrine of <i>forum non conveniens</i>. Preliminarily, the court notes that the motion purports to be “made pursuant to Code of Civil Procedure §583.410, the Court’s inherent authority to dismiss as codified in Code of Civil Procedure §583.150, California Rules of Court, rule 3.1342, and California Rule of Professional Conduct 1.3(b).” (Not. of Mot. at p. 1, lines 26-28.) None of these cited authorities appear to be applicable here, as they each concern the issue of undue delay or diligence. Nonetheless, as the moving points and authorities deal with the issue and authorities concerning motions to dismiss or stay, the court analyzes the motion as being for such. (See Mov. Pts. & Auth. at p. 3, lines 17 to p. 4, line 7 [citing Code Civ. Proc., §§ 418.10(a), (e), 410.30(a), 396b].) <i>Mandatory Forum Selection Clause?</i> While not explicit, Defendants appear to argue that the parties entered into a mandatory forum selection clause. Defendants argue that Plaintiff’s claims arise from a residential lease dispute between them, which states: “Should either Party file a lawsuit arising out of this Lease Contract said lawsuit shall be exclusively filed and heard in state court located in the county where the apartment community is located. This Lease Contract shall be

governed by the laws of the state of Missouri.” (Carney Decl., ¶ 3, Exh. A at p. 7, ¶ 41.)

When a case involves a mandatory forum selection clause, the traditional forum non convenien analysis does not apply. (See *Intershop Communications v. Superior Court* (2002) 104 Cal.App.4th 191, 198 [“[A] motion on traditional grounds of forum non conveniens is addressed to the discretion of the trial court to decline jurisdiction, and the trial court retains a ‘flexible power’ to consider and weigh all the factors.... In contrast, in cases with a contractual forum selection clause, the burden of proof is on the plaintiff, the party resisting the motion.”].) A mandatory forum selection clause is presumed valid and will be enforced unless enforcement of the clause would be unreasonable under the circumstances of the case. (See, e.g., *Smith, Valentino & Smith, Inc. v. Superior Court* (1976) 17 Cal.3d 491, 496; *Quanta Computer Inc. v. Japan Communications Inc.* (2018) 21 Cal.App.5th 438, 444; *Intershop*, 104 Cal.App.4th at 198.)

To the extent that Defendants are arguing that a mandatory forum selection clause mandates dismissal, Defendants have failed to offer admissible evidence of a contract between the parties containing a mandatory forum selection clause.

Plaintiff challenges Defendants’ failure to authenticate the lease agreement that is attached as Exhibit A of the Declaration of Terence Carney, defense counsel. Mr. Carney appears to lack the ability to authenticate the lease agreement. And Plaintiff filed a declaration stating, “I entered into no written agreement *with Red Tail*” and that “*Red Tail and I* have not agreed to any forum selection clause that requires this suit to be filed in St. Louis County, Missouri.” (Naren Chaganti Decl., ¶¶ 4-5, emphasis supplied). The second amended complaint references a written lease with Red Tail (SAC, ¶3) but does not attach the lease agreement. And Plaintiff now appears to believe that Red Tail is not the owner of the Missouri apartment complex. (Chaganti Decl., ¶¶ 2-3.)

As such, it is unclear if the lease agreement attached as Exhibit A (which is purportedly between an FLT HUNTERS

GLEN LLC and “NARENDRA CHAGANTI”) is the same lease agreement on which Plaintiff NAREN CHAGANTI’s claim is based against Defendants RED TAIL RESIDENTIAL LLC and LINDSY HARVEY.

As such, Defendants have not established by admissible evidence that a mandatory forum selection clause exists between the parties.

Traditional Discretionary Forum Non Conveniens

“In applying the traditional forum non conveniens analysis, the trial court must engage in a two-step process, on which the defendant bears the burden of proof. [Citation.] In the first step, the court must determine whether a suitable alternative forum exists. [Citation.] If the court finds that a suitable alternative forum exists, it must then balance the private interests of the litigants and the interests of the public in retaining the action in California. [Citation.]” (*Animal Film, LLC v. D.E.J. Prods., Inc.* (2011) 193 Cal.App.4th 466, 472.)

Step One - Suitable Alternative Forum

“A forum is suitable if there is jurisdiction and no statute of limitations bar to hearing the case on the merits. [Citation.] ‘[A] forum is suitable where an action “can be brought,” although not necessarily won.’ [Citations.]” (*Animal Film*, 193 Cal.App.4th at 472.) The existence of a suitable alternative forum is a legal question. (*Ibid.*)

Defendants contend that Missouri is a suitable alternative forum given that the lease involves real property in Missouri. Further, Defendants contend that Defendants will consent to the jurisdiction of the out-of-state forum, Missouri, for the purposes of litigating these claims and will agree to toll the statute of limitations for the time this Action is pending against Defendant in California. To the extent that Defendants actually reach such an agreement, Defendants have identified a suitable alternative forum.

Step Two - Balance of Interests of Parties and Public

The second step involves consideration of the private interest factors and the public interest factors. The private interest factors include “the ease of access to sources of proof, the cost of obtaining attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses.” (*Ford Motor Co. v. Insurance Co. of North America* (1995) 35 Cal.App.4th 604, 610.) “The public interest factors include avoidance of overburdening local courts with congested calendars, protecting the interests of potential jurors so that they are not called upon to decide cases in which the local community has little concern, and weighing the competing interests of California and the alternate jurisdiction in the litigation.” (*Stangvik v. Shiley Inc.* (1991) 54 Cal.3d 744, 751.)

A. Private Factors (access to proof, cost of obtaining witnesses, availability of compulsory process)

The court finds that the private factors are neutral. Defendant Red Tail is alleged to be a business with a principal place of business in Irvine, California. Plaintiff is also currently a resident of California. Defendants do not dispute Red Tail’s principal place of business. It is unclear the state of which Defendant Lindsay Harvey is a resident. Further, Plaintiff offered evidence of an email relating to the towing at issue, which appears to give the contact information/address of Lindsay Harvey at “RED TAIL RESIDENTIAL, 2082 Michelson Drive, Irvine, CA 9612.” (See Chaganti Decl., Exh. 1 at signature block). Defendants do not proffer evidence that the access to proof, cost of obtaining witnesses, or the compulsory process for attendance of unwilling witnesses would be more difficult or burdensome in California.

B. Public Factors

The court also finds that the public factors are neutral. Defendant Red Tail’s principal place of business is in California. Venue is proper in the county where the principal place of business of a corporation is situated. (*Hale v. Bohannon* (1952) 38 Cal.2d 458, 469). A plaintiff's

		choice of venue is regarded as presumptively correct, and a corporate defendant has the burden of negating the propriety of venue as laid on all possible alternative grounds. (<i>Tokuzo Shida v. Japan Food Corp.</i> (1960) 185 Cal.App.2d 443, 447-448.) Here, Defendants do not proffer admissible showing that a lease was entered into in Missouri and/or that the parties agreed to apply Missouri law. California has a public interest in adjudicating liability of California corporations in California. Based on the current state of the admissible evidence before the court, Defendants have not sufficiently shown that the private and public factors weigh in favor of a forum outside of California. The motion is therefore DENIED without prejudice. Moving Defendants to give notice.
11	Jackson vs. City of Laguna Niguel, California	<u>Motion for Attorneys' Fees</u> The court DENIES Petitioner MICHELLE R. JACKSON's motion for an award of attorney's fees in the amount of \$428,518.00 against Respondent CITY OF LAGUNA NIGUEL, CALIFORNIA (the "City"). Evidentiary Objections: The City's objection number 7 to the declaration of Michelle Jackson and objection number 5 to the declaration of Carlos Perez are SUSTAINED; the remainder of the City's evidentiary objections are OVERRULED. Petitioner's objection number 2 to the declaration of Richard Egger is SUSTAINED; the remainder of Petitioner's evidentiary objections are OVERRULED. RJN: The City's request for judicial notice is GRANTED as to Exhibits 1 and 3 (Evid. Code § 452(d) and DENIED as to Exhibit 2, which is not relevant to the court's analysis. (<i>Sweeney v. California Regional Water Quality Control Board.</i> (2021) 61 Cal.App.5th 1093, 1118, fn. 5 ["Matters

otherwise subject to judicial notice must be relevant to an issue in the action.”].)

Background

Until December 2023, the City used an at-large method of election for its City Council. (Pet’n and Answer at ¶ 10.) On 6/16/23, Petitioner sent a certified letter to the city clerk requesting the elimination of the at-large system, asserting it was racially discriminatory. (Jackson Decl., Exh. 2.)

Pursuant to Elections Code section 10010(e)(3), the City had 45 days from receipt of Petitioner’s letter in which to announce its intention to transition from an at-large method of election to a district-based system. During this “safe harbor” period, Petitioner could not bring an action on behalf of any prospective plaintiff under the California Voting Rights Act (CVRA). (Pet’n and Answer at ¶ 15.) The City availed itself of the safe harbor provision and adopted a resolution declaring its intention to transition from at-large to by-district elections. (Jackson Decl., Exh. 3.) On 1/16/24, the City adopted a resolution changing its at-large system to a by-district election system. (Pet’n and Answer at ¶ 19.)

Subsequently, on 1/24/24, Petitioner submitted a request for payment of attorney’s fees and demographer costs under Elections Code section 10010. (Egger Decl., ¶ 4 and Exh. C.) Petitioner requested a total of \$37,894.98, as limited by the statutory cap.

The City responded by letter dated 2/23/24 under Elections Code section 10010(f), which authorizes a City to request additional substantiation to corroborate the claimed costs. (Egger Decl., ¶ 5 and Exh. D.) The City requested additional documentation for a variety of reasons, including that the 1/24/24 letter did not identify the prospective plaintiff or provide evidence or a statement of the prospective plaintiff’s characteristics in order to evidence standing for purposes of Section 10010. The parties continued to communicate, but Petitioner did not provide the prospective plaintiff information or all of the information requested regarding the alleged demographer. Petitioner filed this petition on 5/28/24.

After filing this matter, the City sought information regarding Petitioner’s standing and demographer through discovery. (Egger Decl., ¶ 7 and Exh. F.) Petition moved for a protective order to protect the prospective plaintiff’s identity and characteristics based on alleged retaliation concerns. (Egger Decl., ¶ 8.) After the parties participated in an Informal Discovery Conference, Petitioner withdrew the motion and then produced documents identifying the individual’s identity, class membership, voter registration, and city residency. (Ibid.) The next month, the City paid Petitioner \$28,986.75 for her attorney’s fees. (Letourneau Dec., ¶¶ 4-5; Egger Decl., ¶ 11.)

The City obtained information about the demography expenses and deposed the alleged demographer. (Egger Decl., ¶ 12.) The City and Petitioner agreed to pay \$4,500 as full and final payment for the demographer expenses. (Egger Decl., Exh. K.)

Attorney’s Fees and the Safe Harbor Cap

Petitioner argues that she is not limited by the safe harbor cap of Section 10010(f) because the City did not abide the safe harbor requirements. Petitioner does not show however that the City did not abide by the safe harbor requirements.

Under the “safe harbor” provision of section 10010(e)(3)(A)–(B), the City had 45 days to agree that it would change from at-large to district-based elections. During this period, no prospective plaintiff could bring a lawsuit under the CVRA. Petitioner here evidently delivered her letter requesting the elimination of the at-large election system on 6/16/23. (Jackson Decl., Exh. 2.) Petitioner claims the letter was sent by certified mail, but the letter itself states, “VIA HAND DELIVERY.” (Ibid.) At any rate, the City adopted the resolution declaring its intent to transition to district elections on 7/26/23 – i.e., 40 days after 6/16/23. (Jackson Decl., Exh. 3.) Thus, it appears that the City acted timely to avail itself of the safe harbor provision.

Section 10010 next provides that “a prospective plaintiff shall make the demand [for reimbursement for the cost of the work product generated to support the notice] in writing and shall substantiate the demand with financial documentation, such as a detailed invoice for demography services. A political subdivision may request additional documentation if the provided documentation is insufficient to corroborate the claimed costs.” (Elec. Code, § 10010(f.) Section 10010(f) also provides for the cap of \$30,000, which is to be adjusted based on the Consumer Price Index.

As discussed previously, the City requested additional documentation to substantiate the demand for reimbursement, but Petitioner did not provide this requested documentation until well after this lawsuit was filed and only after withdrawing Petitioner’s motion for a protective order seeking to avoid disclosing the prospective plaintiff’s identity and characteristics. (Egger Decl., ¶ 9.) The City paid Petitioner on 1/15/26 – i.e., within 45 days of receiving the information. (Letourneau Decl., ¶¶ 4-5, Egger Decl., Exh. 1.)

“Under California law, ‘each party to a lawsuit must pay its own attorney fees unless a contract or statute or other law authorizes a fee award.’ ([Citations]; Code Civ. Proc., § 1021.) Thus, unless specifically provided by statute or agreement, attorney fees are not recoverable.” (*K.I. v. Wagner* (2014) 225 Cal.App.4th 1412, 1420-1421; *Segal v. ASICS America Corp.* (2022) 12 Cal.5th 651, 666-667 [Attorney fees may be awarded only when they are recoverable as costs under Code of Civil Procedure section 1033.5, subdivision (a)(10)—that is, only when they are authorized by contract, statute, or law].)

Upon motion, a court may award attorneys' fees to a successful party against one or more opposing parties in any action which has resulted in the enforcement of an important right affecting the public interest if: (a) a significant benefit, whether pecuniary or nonpecuniary, has been conferred on the general public or a large class of persons, (b) the necessity and financial burden of private enforcement, or of enforcement by one public entity against another public entity, are such as to make the

		award appropriate, and (c) such fees should not in the interest of justice be paid out of the recovery, if any. (Code Civ. Proc., § 1021.5.) Here, the important right affecting the public interest was obtained before this writ was filed. In contemplation of such a success under the CVRA, the legislature provided that the party responsible could be awarded up to \$30,000.00 (adjusted for inflation) as compensation for fees incurred in enforcing the important right. The writ filed by Petitioner here had no bearing on the issue of whether the City would convert its “at large” voting system to a district based election system. That task was accomplished after petitioner served her initial demand letter but before the Petition was filed. The Petition here sought only to compel the City to pay what was owed to Petitioner, though Petitioner had not yet provided the requested documentation to corroborate the claimed costs. Thus, Petitioner was not a “successful party” under Section 1021.5 and the filing of the petition for writ did not confer an important public benefit. And while Petitioner appears entitled to the statutory fees under Section 10010, it appears that she has already received such fees. Accordingly, the motion is DENIED. Respondent to give notice.
13	Cannon vs. Crown Point Condos No. 2	<u>Motion for Preliminary Injunction</u> No Tentative.

15	Quaid vs. Orange County Fire Authority	<u>Demurrer (re First Amended Answer)</u> The court SUSTAINS, with 15 days leave to amend, Plaintiff CATHERINE QUAID’s unopposed demurrer to the following affirmative defenses in the First Amended Answer (FAA) filed by Defendant/Cross-Defendant BRIGHTVIEW LANDSCAPE SERVICES, INC. (Doe 30) (“Defendant Brightview”): 7th, 8th, 13th, 21st, and 24th affirmative defenses. 6th A/D (estoppel) In one paragraph, the sixth affirmative defense states that “plaintiff is barred from recovery by the equitable doctrine of estoppel because she already filed a claim with the appropriate government entities.” The elements of the affirmative defense for equitable estoppel are: (i) the plaintiff was apprised of the facts; (ii) that the plaintiff: (a) intended that the conduct be acted upon, or (b) acted such that defendant had a right to believe it was intended; (iii) the defendant was ignorant of the true facts; and (iv) the defendant relied upon the conduct to the party’s injury. (<i>Sofranek v. Merced County</i> (2007) 146 Cal.App.4th 1238, 1250.) The FAA does not state sufficient facts to support a defense for estoppel. The FAA alleges no interaction between these two parties prior to the alleged incident to support a defense of estoppel. As such, the demurrer to the sixth affirmative defense is SUSTAINED. 7th A/D (unclean hands) The seventh affirmative defense states that “plaintiff is barred from recovery by the equitable doctrine of unclean hands because this answering defendant is unsure if Plaintiff contributed to the occurrence of the alleged slip and fall.” The doctrine of unclean hands bars recovery when the plaintiff has violated conscience, good faith, or other
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equitable principles in conduct that relates directly to the transaction at issue. (*Fibreboard Paper Products Corp. v. East Bay Union of Machinists Local 1304* (1964) 227 Cal.App.2d 675, 726.) The misconduct must “relate directly to the transaction concerning which the complaint is made” and “pertain to the very subject matter involved” so as to “affect the equitable relations between the litigants.” (*Id.* at p. 729.) Whether the doctrine bars recovery in tort depends on “analogous case law, nature of misconduct, and relationship of misconduct to claimed injuries.” (*Blain v. Doctors Co.* (1990) 222 Cal.App.3d 1048, 1060.)

Here, the FAA does not allege facts to support the defense and, in fact, concedes no such facts are known to the answering defendant at this time.

As such, the demurrer to the seventh affirmative defense is SUSTAINED.

8th A/D (failure to mitigate damages)

The eighth affirmative defense states that “plaintiff “could have mitigated her alleged injuries, damages or losses, if any, by the exercise of reasonable efforts” and “failed and refused to do so.”

The elements of the affirmative defense for failure to mitigate damages are: (i) party has suffered damage resulting from a breach of contract or tort; (ii) the party failed to take reasonable steps and exercise ordinary care to mitigate the damages; and (iii) losses which could have been avoided for which there can be no recovery. (*Valle De Oro Bank v. Gamboa* (1994) 26 Cal. App. 4th 1686, 1691.)

The FAA alleges no facts to constitute the defense, only conclusory statements which are insufficient to overcome demurrer.

As such, the demurrer to the eighth affirmative defense is SUSTAINED.

13th A/D (assumption of risk)

The thirteenth affirmative defense states “the plaintiff acted with full knowledge of the probabilities and possibilities of danger” and “invite[d] injury and assumed any and all risks to be reasonably contemplated as incident to [her] said actions and positions.”

As a general rule, persons have a duty to use due care to avoid injury to others, and may be held liable if their careless conduct injures another person. (*Knight v. Jewett* (1992) 3 Cal.4th 296, 315 [citing Civ. Code, § 1714].) The doctrine of primary assumption arises “where, by virtue of the nature of the activity and the parties’ relationship to the activity, the defendant owes no legal duty to protect the plaintiff from the particular risk of harm that caused the injury.” (*Knight v. Jewett* (1992) 3 Cal.4th 296, 314-315.)

Here, the FAA alleges no facts to support the defense, only conclusory statements which are insufficient to overcome demurrer.

As such, the demurrer to the thirteen affirmative defense is SUSTAINED.

21st A/D (intervening and superseding cause)

The twenty-first affirmative defense states that “the conduct or actions of third parties acted as intervening and superseding forces, thereby cutting off any potential liability on the part of this answering defendant.”

An intervening cause is an independent force that operates after the defendant’s negligent conduct and contributes to the plaintiff’s injuries. (*Ash v. North American Title Co.* (1999) 74 Cal.App.4th 1214, 1223.) An intervening cause becomes a superseding cause only when both the intervening act and the results of the act are unforeseeable. (*Ibid.*) A superseding cause breaks the causal chain between the defendant’s conduct and the plaintiff’s injuries, thereby relieving the defendant from tort liability. (*Ibid.*)

Here, although the FAC alleges that other defendants had prior notice and knowledge of the hazards existing at the

property and should have warned about or corrected the conditions (see, e.g., FAC ¶ 18), Defendant Brightview's FAA generally denies that allegation. The FAA alleges no facts to constitute the defense, only conclusory statements which are insufficient to overcome demurrer.

As such, the demurrer to the twenty-first affirmative defense is SUSTAINED.

24th A/D (standing)

The twenty-fourth affirmative action alleges that "plaintiff does not have standing to assert the causes of action in plaintiff's First Amended Complaint against this answering defendant because co-defendants and cross-defendants allowed for a potential dangerous condition to emerge when, without providing this answering defendant with proper notice, failed to remediate any alleged build up of water and grass clippings that Plaintiff should have noticed before she claims she slipped and fell due to her own negligence."

Code of Civil Procedure section 367 provides, "Every action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute." "One who invokes the judicial process does not have 'standing' if he . . . does not have a real interest in the ultimate adjudication because the actor has neither suffered nor is about to suffer any injury of sufficient magnitude reasonably to assure that all of the relevant facts and issues will be adequately presented." (*California Water & Telephone Co. v. County of Los Angeles* (1967) 253 Cal.App.2d 16, 22–23.)

Here, the FAA concedes Plaintiff allegedly slipped and fell, sustaining injuries (see, e.g., FAA at 6:23-24, 7:18-24), supporting her standing to pursue claims based on the incident.

As such, the demurrer to the twenty-fourth affirmative defense is SUSTAINED.

15 days leave to granted to correct the deficiencies noted.

		Jury trial remains set for 12/14/26. Plaintiff to give notice.
17	Milman vs. Sunshine Behavioral Health Group, LLC	<u>Motion to Compel Arbitration and Stay Proceedings</u> The court GRANTS Defendants SUNSHINE BEHAVIORAL HEALTH GROUP, LLC and CHAPTERS CAPISTRANO, LLC’s motion to compel arbitration and stay action. On a motion to compel arbitration under the Federal Arbitration Act (“FAA”), the court’s role is limited to deciding: “(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute.” (<i>Brennan v. Opus Bank</i> (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; <i>Dean Witter Reynolds, Inc. v. Byrd</i> (1985) 470 U.S. 213, 218 [“By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration.”].) “The trial court determines whether an agreement to arbitrate exists ‘using a three-step burden-shifting process.’ [Citation.] First, the party petitioning to compel arbitration must state ‘the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.’ [Citations.] Signatures on the arbitration agreement need not be authenticated at this initial stage.” (<i>West v. Solar Mosaic LLC</i> (2024) 105 Cal.App.5th 985, 992.) “If the [moving party] meets their initial burden, the burden of production shifts to the party opposing the [motion] to compel arbitration, who must offer admissible evidence creating a factual dispute as to the agreement's existence. [Citation]. When the dispute centers on the authenticity of signatures, ‘[t]he opponent need not prove that his or her purported signature is not authentic, but

must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature.’ ” (*Id.*, at 992.)

Here, Defendants proffer an arbitration agreement that provides it is governed by the FAA and that broadly covers all employment-related claims, including disputes based on tort, contract, or statute, such as claims for discrimination, harassment, and/or retaliation, and therefore encompasses the claims asserted in this action. (Van Hooser Decl., ¶¶ 4, 8, Exhs. A-B.)

The court finds that Defendants met their initial burden by submitting a copy of the Arbitration Agreement purportedly signed by Plaintiff, which encompasses Plaintiff’s employment-related claims. (Van Hooser Decl., ¶ 8, Exhs. A-B.)

The burden therefore shifted to Plaintiff to produce admissible evidence to show a factual dispute and shift the burden back to Defendants regarding the agreement’s existence or authenticity.

Incomplete Agreement?

Here, Plaintiff first argues the Arbitration Agreement is unenforceable because the Arbitration Agreement is missing the caption and the beginning of the first paragraph, and as such, Defendants failed to comply with Rule 3.1330 of the California Rules of Court.

In response, Defendants demonstrate the omission was clerical and does not negate the existence or enforceability of the Arbitration Agreement. Defendants explain that the omission resulted from a scanning or photocopying error rather than an incomplete agreement. (Van Hooser Decl., ¶ 8, Exhs. A-B.) Van Hooser attests that he reviewed Plaintiff’s personnel file maintained in the ordinary course of business, which included the signed Arbitration Agreement bearing Plaintiff’s wet signature dated 8/31/21. (*Ibid.*) He further states that Defendants located the

complete template version of the Arbitration Agreement used at the time of Plaintiff's hiring, including the omitted header and introductory language, and confirmed the agreement had not changed during the relevant period. (Ibid.) Van Hooser also attests that Plaintiff's handwriting, date, and signature on the Arbitration Agreement are consistent with multiple other documents contained in Plaintiff's personnel file. (Ibid.) He explains the omission was likely due to the office scanner pulling in the document incorrectly, thereby cutting off a portion of the top of the page. (Supp. Van Hoose Decl., ¶ 3.)

Re the Rules of Court, rule 3.1330 requires only that the arbitration provisions be stated verbatim or attached and incorporated by reference. Here, the operative arbitration provision was attached to the moving papers.

Parties Not Sufficiently Identified?

Plaintiff next argues that the Arbitration Agreement is fatally ambiguous because it repeatedly references "the Company" without identifying the applicable entity or entities.

Under California law the basic requirements for an enforceable contract are (1) parties capable of contracting, (2) the consent of those parties, (3) a lawful object, and (4) adequate consideration. (Civ. Code, § 1550; see *J.B.B. Investment Partners Ltd. v. Fair* (2019) 37 Cal.App.5th 1, 9.) Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable. (*Bustamante v. Intuit, Inc.* (2006) 141 Cal. App. 4th 199, 209.) In determining whether there is mutual consent, the court will often consider extrinsic evidence and resolve a question of fact. (*Eagle Fire & Water Restoration, Inc. v. City of Dinuba* (2024) 102 Cal.App.5th 448, 468.)

Here, the identity of the contracting parties is reasonably ascertainable from the surrounding circumstances and related employment documents, including Plaintiff's offer letter identifying the employer as "Sunshine Behavioral Health Group dba Chapters Capistrano," as well as Plaintiff's acknowledged employment relationship with

Defendants. (Van Hooser Decl., ¶¶ 7-8, Exhs. A-C.) Accordingly, the court may reasonably ascertain the parties' mutual intent to be bound by the Arbitration Agreement, and the failure to specifically identify "the Company" does not render the agreement fatally ambiguous.

Superseded Agreement?

Next, Plaintiff argues that the Arbitration Agreement was superseded by a subsequent written employment agreement dated 8/22/22 ("Employment Agreement").

The execution of a contract in writing, whether the law requires it to be written or not, supersedes all the negotiations or stipulations concerning its matter which preceded or accompanied the execution of the instrument. (Civ. Code, § 1625.)

Here, the Employment Agreement provides, in pertinent part:

16. Entire Agreement. Employee agrees that Employee does not rely, and has not relied, upon any representation or statement not set forth herein by the Company or any of its agents, representatives, or attorneys. This Agreement contains the entire and exclusive agreement of the Parties hereto on any of the subjects described herein, whether written or oral. ***This Agreement supersedes any prior agreements*** between Employee and the Company ***on any of the subjects described herein***, whether written or oral, and cannot be varied, contradicted, or supplanted by evidence of any prior or contemporaneous discussion, correspondence, or oral or written agreements, arrangements, or memoranda of any kind. This Agreement may not be amended or modified otherwise than by a written agreement executed by the Company and Employee or their respective successors and legal representatives.

(Van Hooser Decl., Exh. C [Employment Agreement, p. 6, emphasis supplied].)

Importantly, the Employment Agreement does not mention arbitration, dispute resolution, waiver of jury trial, or the forum for resolving employment-related disputes. Instead, it addresses substantive employment terms such as Plaintiff's position, duties, compensation, confidentiality obligations, and at-will employment status. Because the integration clause is limited to the "subjects described herein," it does not supersede the separately executed Arbitration Agreement.

Plaintiff's reliance on *Grey v. American Management Services* (2012) 204 Cal.App.4th 803 is misplaced. Unlike *Grey*, where the superseding agreement itself contained a narrower arbitration provision, the Employment Agreement here is entirely silent regarding arbitration and dispute resolution. Moreover, the integration clause is expressly limited to the "subjects described herein."

Not Properly Authenticated?

Plaintiff attests that she never received, reviewed, or signed the purported Arbitration Agreement and challenges the authenticity of the signature appearing on the document. (Milman Decl., ¶¶ 3–5.) Milman declares under penalty of perjury that while the signature on the 8/22/22 Employment Agreement "is unmistakably my own", the signature contained in the purported Arbitration Agreement "does not resemble the way I sign my name." (Milman Decl., ¶ 6.)

Interestingly, the signatures on the employment agreement and the arbitration agreement appear more similar to each other than the signature now presented in Plaintiff's 5/1/26 declaration. Further, multiple signatures purporting to be from Plaintiff have been presented and Defendants submitted a declaration from Stephen Van Hooser, custodian of personnel and employment records, attesting that he reviewed Plaintiff's personnel file maintained in the ordinary course of business, that it was Defendants' regular practice to provide new hires with the Arbitration Agreement and related onboarding documents, and that the signed Arbitration Agreement was contained in Plaintiff's personnel file. (Van Hooser Decl., ¶¶ 5–8, Exhs. A-B.) Defendants further authenticated the

Arbitration Agreement by comparing Plaintiff's signature on the agreement with numerous additional documents contained in Plaintiff's personnel file, including approximately 25 additional signature exemplars. (Supp. Van Hooser Decl., ¶ 2, Exh. 1.)

On the record before the court, Plaintiff's conclusory denial and claimed lack of recollection are insufficient to overcome Defendants' prima facie showing authenticating the Arbitration Agreement. To the extent Plaintiff contends the signature is forged or otherwise inauthentic, Plaintiff has not submitted sufficient evidence showing such.

Enforcement by Non-Signatory?

Plaintiff also argues that Defendant Chapters Capistrano, LLC cannot enforce the Arbitration Agreement because it is not a named party to the agreement. Plaintiff argues the agreement refers only to "the Company," an undefined term, and Defendants' evidence identifies the employer as "Sunshine Behavioral Health Group dba, Chapters Capistrano," not as separate legal entities.

Under the doctrine of equitable estoppel, a nonsignatory may enforce an arbitration agreement where the plaintiff's claims against the nonsignatory are dependent upon, founded in, or inextricably intertwined with the obligations imposed by the agreement containing the arbitration clause. (*Goldman v. KPMG LLP* (2009) 173 Cal.App.4th 209, 217-219.) Equitable estoppel applies where a plaintiff alleges substantially interdependent and concerted misconduct by both a signatory and nonsignatory arising from the same underlying contractual relationship. (*Boucher v. Alliance Title Co., Inc.* (2005) 127 Cal.App.4th 262, 271-273.)

Here, Plaintiff's claims against Defendants arise from the same alleged employment relationship and underlying conduct, and Plaintiff alleges both entities jointly employed her. (FAC, ¶¶ 1, 13-14, 17.) Because the claims are intertwined with the employment relationship governed by the Arbitration Agreement, Chapter Capistrano, LLC may enforce the Arbitration Agreement.

Unconscionable?

Plaintiff also argues that the Arbitration Agreement is unenforceable because it is unconscionable.

The doctrine of unconscionability refers to “an absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party.” (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1133.) It consists of both procedural and substantive components – “the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results.” (*Ibid.*)

In order to be unenforceable due to unconscionability, “[procedural and substantive unconscionability] must both be present.” (*Armendariz v. Found Health Psychcare Servs., Inc.*, 24 Cal.4th at 114, quoting *Stirlen v. Supercuts, Inc.* (1997) 51 Cal.App.4th 1519, 1533; see also, *Wherry v. Award, Inc.* (2011) 192 Cal.App.4th 1242, 1246 [“To be voided on [unconscionability] ground[s], the agreement must be both procedurally and substantively unconscionable.”].) However, “they need not be present in the same degree.” (*Armendariz*, 24 Cal.4th at 114; *Parada v. Superior Court* (2009) 176 Cal.App.4th 1554, 1570.)

“Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves. In other words, the more substantively unconscionable the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Armendariz*, 24 Cal.4th 83 at 114.)

“The party resisting arbitration bears the burden of proving unconscionability.” (*Pinnacle Museum Tower Ass’n v. Pinnacle Market Dev. (US), LLC* (2012) 55 Cal.4th 223, 247.)

Procedural Unconscionability

Procedural unconscionability concerns the manner in which the contract was negotiated and the parties' circumstances at that time. It focuses on the factors of surprise and oppression. (*Kinney v. United Healthcare Servs.* (1999) 70 Cal.App.4th 1322, 1329.)

These factors “include, but are not limited to (1) the amount of time the party is given to consider the proposed contract; (2) the amount and type of pressure exerted on the party to sign the proposed contract; (3) the length of the proposed contract and the length and complexity of the challenged provision; (4) the education and experience of the party; and (5) whether the party’s review of the proposed contract was aided by an attorney.” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126-127.)

Thus, the Supreme Court instructs courts to first determine whether an arbitration agreement is adhesive. (See *Armendariz*, 24 Cal. 4th at 114-115.) “Oppression generally takes the form of a contract of adhesion, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.” (*Carmona v. Lincoln Millennium Car Wash, Inc.* (2014) 226 Cal.App.4th 74, 84, quotations and citations omitted.)

Plaintiff contends the Arbitration Agreement is procedurally unconscionable because it was presented on a take-it-or-leave-it basis as part of an onboarding packet, without an opportunity to negotiate, adequate time for review, or advisement regarding consultation with counsel. Plaintiff further argues the arbitration provision was obscured within a multi-section document titled “Applicant’s Statement & Agreement,” without a separate heading clearly identifying it as an arbitration agreement or waiver of jury trial rights.

While some degree of procedural unconscionability may exist because the agreement was presented in the employment context, any such unconscionability appears to be minimal. The arbitration provisions comprise most of the two-page agreement and are not hidden within a lengthy or confusing document. Further, there is no

evidence Plaintiff was rushed, pressured, misled, or prevented from reviewing the agreement before signing.

Substantive Unconscionability

In order to be invalid, the arbitration agreement must also be substantively unconscionable. “Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh.” (*Carmona v. Lincoln Millennium Car Wash, Inc.*, 226 Cal.App.4th at 85, quotations and citations omitted.) “A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must be so one-sided as to ‘shock the conscience.’” (*Ibid.*)

The “paramount consideration” is the mutuality of the obligation to arbitrate. (*Nyulassy v. Lockheed Martin Corp.* (2004) 120 Cal.App.4th 1267, 1287.) “Substantive unconscionability focuses on the one-sidedness or overly harsh effect of the contract term or clause.” (*Harper v. Ultimo* (2003) 113 Cal.App.4th 1402, 1406-1407.) An arbitration agreement “lacks basic fairness and mutuality if it requires one contracting party, but not the other, to arbitrate all claims arising out of the same transaction or occurrence or series of transactions or occurrences.” (*Armendariz*, 24 Cal.4th at 120.)

Plaintiff argues that the Arbitration Agreement is substantively unconscionable because it repeatedly refers to “the Company” without identifying the applicable entity or entities, thereby allegedly allowing Defendants to selectively invoke the agreement across multiple related entities. While uncertainty regarding the parties to an arbitration agreement may contribute to unconscionability concerns in some circumstances, the Arbitration Agreement here is bilateral on its face and governs disputes arising from Plaintiff’s employment relationship. (Van Hooser Decl., ¶ 8, Exhs. A-B.) The agreement does not contain the type of one-sided provisions limiting remedies, restricting discovery, imposing unfair costs, or exempting employer claims from arbitration that typically support a finding of substantive unconscionability. Moreover, Plaintiff’s claims against both Defendants arise from the

same alleged employment relationship and operative facts. Accordingly, any alleged ambiguity regarding “the Company,” standing alone, is insufficient to render the Arbitration Agreement substantively unconscionable.

Because Plaintiff has failed to demonstrate substantive unconscionability, the minimal procedural unconscionability present is insufficient to render the Arbitration Agreement unenforceable.

Waiver?

Plaintiff also argues that Defendants waived their right to compel arbitration through unreasonable delay.

The right to compel arbitration is contractual and may be waived, either expressly or through conduct inconsistent with an intent to arbitrate. (See Code Civ. Proc., § 1281.2; *Davis v. Blue Cross of Northern Calif.* (1979) 25 Cal.3d 418, 425.) However, delay alone does not establish waiver. In determining a waiver, the court can consider whether: (1) the party's actions are inconsistent with the right to arbitrate; (2) “the litigation machinery has been substantially invoked” and the parties “were well into preparation of a lawsuit” before the party notified the opposing party of an intent to arbitrate; (3) a party either requested arbitration enforcement close to the trial date or delayed for a long period before seeking a stay; (4) a defendant seeking arbitration filed a counterclaim without asking for a stay of the proceedings; and (5) “important intervening steps [e.g., taking advantage of judicial discovery procedures not available in arbitration] had taken place.” (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 573, 580.)

Here, the record does not support a finding of waiver. The record shows that after Plaintiff filed this employment action on 12/11/25, Defendants made multiple unsuccessful attempts to have Plaintiff submit her claims to arbitration. (Javier Decl., ¶¶ 3-10, Exhs. 1-9.) Defendants repeatedly advised Plaintiff of their intent to file a motion to compel arbitration if no stipulation is reached. (Id.) Defendant thereafter filed an Answer on 2/18/26 and filed this motion to compel arbitration shortly

		thereafter, on 2/24/26. Plaintiff does not show that Defendants acted inconsistently with an intent to arbitrate, such as by engaging in extensive discovery, filing substantive motions, or posting jury fees. Accordingly, Plaintiff has not demonstrated that Defendants waived their right to compel arbitration. In sum, the court GRANTS Defendants’ motion to compel arbitration. The court also VACATES the 11/23/26 jury trial and STAYS this action pending resolution of the parties’ arbitration. (Code Civ. Proc., § 1281.4.) The court sets a Status Conference re Arbitration for November 16, 2026 at 9:00 am, in Dept. W8. Plaintiff’s counsel SHALL file and serve a status report regarding the arbitration <u>no later than 10 court days prior</u> to the hearing. Defendants to give notice.
18	Wong vs. Makhail	<u>Demurrer (re Third Amended Complaint) (x2)</u> <u>Motion to Strike</u> <u>Motion to Be Relieved as Counsel of Record (x2)</u> The operative pleading is the Third Amended Complaint (“TAC”), which contains a single cause of action for “invasion of privacy through publication of private facts and false light publicity”, asserted against all defendants. Plaintiffs’ opposing briefs (ROAs 427, 429) are unhelpful. The briefs fail to state whether they are responding to the demurrer/motion to strike brought by Defendant Makhail or Defendants Powerstone and Mourer, or both. More importantly, Plaintiffs appear to be responding to arguments not made in any of the moving papers (e.g., statute of limitations, standing, sham pleading) and claims not made in the TAC (e.g., fraud, IIED, NIED).

Plaintiffs' counsel should be prepared to discuss these defects in the opposing papers at the hearing.

1. Makhail

Demurrer

The court **OVERRULES** Defendants PAUL MAKHAIL's uncertainty demurrer to the Third Amended Complaint ("TAC") filed by Plaintiffs DOUGLAS WONG and JENNIFER JING. (Code Civ. Proc., § 430.10(f).)

Makhail argues that this court previously found that the Second Amended Complaint ("SAC") was "uncertain", and on this basis, Makhail now argues that the TAC "did not resolve the uncertainty." (Opp'n Br., 3:20-25.)

Not so. Makhail previously demurred *generally* to the SAC and the demurrer was *overruled*. (ROA 312.) Makhail did *not* previously demur to the SAC on the ground of uncertainty. (Id.) Piecemeal demurrers are not permitted. (See Code Civ. Proc., § 430.41(b).)

Further, this court did not find that the SAC was "uncertain". Again, Makhail's demurrer was overruled. It was overruled after Makhail argued, but failed to show, that the purported publication was public (versus private). The court stated, "The court cannot determine at this pleading stage that the information was public, and not private, or vice versa. Neither side cites authority sufficient to support their argument. And with the demurrer here, the court must read the SAC liberally and in the light most favorable to Plaintiffs." (2/10/26 Minute Order [ROA 369], p. 2.)

Nor did co-defendants demur to the SAC on the ground of uncertainty. (ROA 299.) While the court sustained the general demurrer of co-defendants to the SAC, the court did so on the ground that the SAC contains insufficient facts "to show wrongdoing by either Powerstone or Mourer." (ROA 369, p. 4.)

Makhail's demurrer is OVERRULED.

Motion to Strike

The court **DENIES** Defendant PAUL MAKHAIL's motion to strike portions of the Third Amended Complaint ("TAC") filed by Plaintiffs DOUGLAS WONG and JENNIFER JING.

Makhail moves to strike the following from the TAC:

"Although in Plaintiffs' original Complaint, there were allegations about an incident in June 2022 in a paragraph that preceded the allegations about the poster being hung, no date was given as to when a 'letter' was posted in the guardhouse. The Complaint also alleged that there was not just one letter posted in the guardhouse but two."

(TAC, p. 6, ¶ 30, lines 3-6.)

Makhail argues that this paragraph exceeds the scope of this court's ruling permitting leave to amend. (See 2/10/26 Order.)

The court disagrees. The paragraph appears to address a contradiction raised by co-defendants in their demurrer to the SAC. (See 2/10/26 Minute Order, at p. 4.) As such, the portion sought to be stricken does not exceed the scope of the leave previously granted.

In sum, the court DENIES Makhail's motion to strike.

Defendant Makhail SHALL file and serve an Answer to the TAC within 10 days. (Cal. Rules of Ct., rule 3.1320(g).)

Plaintiffs to give notice.

2. Powerstone Property and Mourer

The court **SUSTAINS** Defendants POWERSTONE PROPERTY MANAGEMENT and SCOTT MOURER's (collectively, "Defendants") demurrer to the Third Amended Complaint ("TAC") filed by Plaintiffs DOUGLAS WONG and JENNIFER

JING, **without leave to amend**. Defendants demur generally and on the ground of uncertainty. (Code Civ. Proc., § 430.10(e), (f).)

This court previously sustained Defendants' general demurrer to the Second Amended Complaint ("SAC") on the basis that the SAC failed to allege facts showing wrongdoing by either Mourer or Powerstone. (ROA 369, p. 4.)

The court finds that the TAC also fails to allege facts showing wrongdoing by either Mourer or Powerstone. The TAC merely adds the following allegations: On 10/17/22, Makhail circulated an email to Mourer, and Mourer told Plaintiffs that since Makhail hired Mourer, Mourer would do what Makhail wanted him to do. (TAC, ¶ 29.)

The TAC's allegations against Mourer and Powerstone remain deficient. For example, nowhere in the TAC do Plaintiffs allege that either Powerstone or Mourer wrongfully published private information about either plaintiff. Nor does the TAC allege facts showing that either Powerstone or Mourer made the decision to hang the Jing Poster in the guardhouse. Rather, the TAC alleges that Mourer was an employee of Powerstone and that Powerstone was a property management company for the Pacific Ridge Homeowners Association. (TAC, ¶¶ 5-7, 21.)

As Plaintiffs have now had numerous opportunities to amend, the court **SUSTAINS without leave to amend**.

Moving Defendants to give notice.

Motions to Be Relieved as Counsel

The motions are **DENIED as MOOT**. On 4/20/26, attorney JAMES W. DENISON filed motions to be relieved as counsel for Plaintiffs (1) DOUGLAS WONG and (2) JENNIER JING. (ROA 407.) Shortly thereafter, Substitutions of Counsel forms (MC-050) were filed on 4/23/26, whereby attorney Denison was substituted out as Plaintiffs' counsel. (ROA 417, 418.)

		Case Management Conference remains set for 8/3/26.